

SUPERIOR COURT OF CALIFORNIA COUNTY OF SAN FRANCISCO

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ROCHELLE C. EAST
PRESIDING JUDGE

BRANDON E. RILEY
COURT EXECUTIVE OFFICER

April 29, 2026

Mayor Daniel Lurie
1 Dr. Carlton B. Goodlett Place
San Francisco, CA 94102

Re: San Francisco Pretrial – Response to April 17, 2026 BASF Letter

Dear Mayor Lurie:

The Bar Association of San Francisco (BASF) is a treasured justice partner that garners much respect in our long history of collaboration and reliance on its services to advance equal access to justice in our City and County. However, on the topic of delivery of pretrial and diversion services, the Court respectfully but strongly disagrees with its stance that, primarily because SF Pretrial has been doing this work for 50 years, it should continue to oversee these programs.

Longevity and tradition simply should not endure as the main reasons for service delivery to San Franciscans. Notably, you, as the elected leader of our City and County, have made this exact point a hallmark of your leadership. Despite the City and County's deep-rooted identity and pride in doing things differently, adherence to longstanding practices because they are unique and familiar is not justification for refusing to change.

As you know, the Court is exercising its responsibility pursuant to AB 102, Section 8, to select the Adult Probation Department (APD) to deliver these critical services in our justice system effective July 1, 2026. This statute provides that "Courts shall contract with any county department, including county probation departments, to provide pretrial services." The Court also recognizes that July 1, 2026, is an ambitious target that might not be achievable, but is committed to moving the services when the necessary structure and programs are in place. We also recognize that the Sheriff's Department may be in a better position to handle some parts of pretrial release, such as electronic monitoring, and trust that the two agencies can agree about which one is in the best position to deliver a particular service.

The Court is confident that despite the five decades of reliance on SF Pretrial and its predecessor to deliver pretrial services, it is essential to align with the 55 of California's 58 counties by designating APD as the Court's primary provider of pretrial services. APD has developed a cost-effective and comprehensive plan to implement evidence-based supervision practices for individuals released prearrest and pretrial, ensuring the least restrictive means necessary to promote public safety and court appearance.

APD operates under the authority of the Court. This relationship provides both transparency and accountability. This structure ensures that the Court receives reliable, real-time information for faster, more informed decisions. Clear responsibility for performance, factual data integrity, and fiscal accountability are hallmarks of this well-functioning system.

APD's service-driven mandate and reentry expertise are the proven foundation needed to support successful outcomes at the pretrial stage. APD currently delivers services directly through its mobile van, M-CASC, and the Community Assessment and Services Center (CASC), reaching unhoused and justice-involved individuals who are often challenging to locate and serve. APD connects with over 3,000 unique individuals annually, including SF Pretrial clients, to provide housing, treatment, critical support services, employment, education, and benefits, improving engagement and outcomes.

BASF's concern that these services would transition from a "neutral entity, independent from any law enforcement agency," is noted. However, the Sheriff's Office is a law enforcement agency which operates all of San Francisco's jails – and currently manages SF Pretrial Services' oversight and funding; while APD is currently statutorily mandated to keep individuals safely in the community, supported with the critical services needed to avoid additional incarceration. We are confident that APD's professionalism and expertise will deliver the appropriate levels of operational separation to continue to distinguish between the unique populations that APD serves.

Likewise, BASF's argument that this transition would be "fiscally irresponsible" is an unsubstantiated criticism that relies on the contention that "we can think of no reason to jeopardize a program which already works well and has for fifty years." In reality, APD's budget request is comparable to present day operating costs for which the City and County already provides funding.

The Court strongly disputes BASF's view that SF Pretrial is in "model health." If this were true, SF Pretrial should have eagerly accommodated the Court's formal request to share its data under the requirements of AB 102, Section 10(a). That statute requires contractors to adhere "to the same transparency, accountability, and outcome measurement standards that apply to county probation departments." Instead, our request was met with a refusal to share that data, indicating an operation experiencing something other than "model health."

Preserving legacy systems is not progress and will not serve the best interest of San Franciscans in our criminal justice system. We strongly support moving pretrial services to a provider with a model that requires accountability and demonstrated performance outcomes, which aligns with your goals to deliver more effective, streamlined services for San Franciscans.

We are certain that with your support, BASF and other justice partners will adapt to the transition of pretrial services to APD and will continue our collaborative efforts to assure equal access to justice in the City and County of San Francisco.

Sincerely,



Rochelle C. East
Presiding Judge



Brandon E. Riley
Court Executive Officer

Cc: Staci Slaughter, Chief of Staff to San Francisco Mayor Daniel Lurie
Catherine Stefani, Assemblymember
Myrna Melgar, San Francisco Supervisor
Peggy Otum, President, Bar Association of San Francisco
Yolanda Jackson, Executive Director, Bar Association of San Francisco
Manohar Raju, San Francisco Public Defender
Brooke Jenkins, San Francisco District Attorney
Ana Gonzalez, Assistant District Attorney
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